

proper limitations to trustees were inserted to preserve contingent remainders (*a*). But where a testator devised an estate to C. for life, and on her death to be "strictly entailed on her eldest son J." the Court directed a settlement on C. for life, with remainder to J. for life, with remainder to his first and other sons successively in tail general, with remainder to his daughters as tenants in common in tail general, &c. (*b*).

16. "**Heirs of the body**" and "**issue**" not of the same import. — We may here remark that "*heirs of the body*" and "*issue*" are far from being synonymous expressions. The former are properly words of limitation, whereas the latter term is in its primary sense a word of purchase. In several cases the Court appears to have ordered a strict settlement from the use of the term "*issue*," where, had the expression been "*heirs of the body*," the estate would probably have been construed an estate tail (*c*).

17. **Daughters included in "heirs of the body" and "issue."** — Of course, *daughters* as well as sons will be included under "*heirs of the body*" (*d*), or "*issue*" (*e*); for they equally answer the description, and are equally objects of bounty; and where these words are construed as words of purchase the settlement will be made upon the daughters in default of sons, as tenants in common in tail, with cross remainders between or amongst them (*f*).

18. **Waste.** — In executing a strict settlement the Court, unless there be some special words which point to the contrary, will not make the tenant for life dispunishable for

Sim. 386; *Coape v. Arnold*, 2 Sm. & Gif. 311; 4 De G. M. & G. 574.

(*a*) *Trevor v. Trevor*, 13 Sim. 108; affirmed on this point, 1 H. of L. Ca. 239; and see *Coape v. Arnold*, 2 Sm. & Gif. 311; 4 De G. M. & G. 574.

(*b*) *Sealey v. Stawell*, 9 I. R. Eq. 499.

(*c*) *Ashton v. Ashton*, cited in *Bagshaw v. Spencer*, 1 Coll. Jur. 402; *Meure v. Meure*, 2 Atk. 265; and see *Horne v. Barton*, G. Coop. 257; *Dodson v. Hay*, 3 B. C. C. 405; *Stonor v. Curwen*, 5 Sim. 264; *Crozier v. Cro-*

zier, 2 Conn. & Laws. 311; *Rochford v. Fitzmaurice*, 1 Conn. & Laws. 158; *Bastard v. Proby*, 2 Cox, 6; *Haddelsey v. Adams*, 22 Beav. 276.

(*d*) *Bastard v. Proby*, 2 Cox, 6.

(*e*) *Meure v. Meure*, 2 Atk. 265; *Ashton v. Ashton*, cited in *Bagshaw v. Spencer*, 1 Coll. Jur. 402; *Trevor v. Trevor*, 13 Sim. 108.

(*f*) *Meure v. Meure*, *Ashton v. Ashton*, *Bastard v. Proby*, and *Trevor v. Trevor*, *ubi supra*; *Marryat v. Townley*, 1 Ves. sen. 105.